
PILLAR 10

Creator Indexing & Audience Demographic Data

Why you should buy sound-usage data instead of demographics.

Respect the Funk · marketing engine research program

Target: *Losing Sleep* — Hallow Youth · 15 July 2026

589 lines · 206 source links

Pillar 10: Creator Indexing & Audience Demographic Data

Research for the "Losing Sleep" (Hallow Youth / Respect the Funk) marketing engine — how to find, index, and evaluate creators by **the demographics of their audience**, not their own follower count. Researched July 2026.

Bottom line / recommendation

The cheapest viable path is to stop trying to buy audience demographics, and instead buy *sound-usage data* + use free platform-native tools. Here's the reasoning:

- Audience demographics for creators you haven't onboarded are estimates, not measurements — and no vendor claims otherwise.** Every platform (TikTok, Meta, YouTube) gates true audience demographic data behind the *creator's own OAuth grant*. There is no endpoint on any platform that returns an arbitrary creator's follower demographics. Third-party tools therefore infer age/gender/country by running image recognition and NLP over a **sample of the publicly visible subset** of a creator's followers, then extrapolating. Modash says this plainly: it's "*based on a statistical sample of the audience, so treat it as a strong indicator rather than exact numbers*" ([Modash Help Center](#)). **Not a single vendor in this market publishes an accuracy figure for their audience age/gender/country estimates.** See §4 — this is the most important finding in this report.
- The tools that *do* have first-party platform data are all enterprise-priced and out of range.** CreatorIQ (~\$25–60K/yr) has official TikTok Marketplace API and YouTube Creator Partnership API access; Kolsquare (€500/mo, annual-only) is a Meta Business Partner. Everything affordable — Modash, HypeAuditor, Heepsy — is scraped-and-estimated. And critically: **even the enterprise tools' first-party data only covers creators who have connected their accounts.** Their discovery indexes are still estimated. See §3.
- Sound-usage data is higher-signal than demographic data and 10x cheaper.** If a creator already posted with an adjacent artist's sound and it performed, that is *measured behavioral evidence* their audience likes this music — strictly better than a 60%-confidence guess that their audience is 62% female aged 18–24. **Soundcharts at \$10–49/mo** or **Chartmetric at \$40–117/mo** gets you this ([Soundcharts pricing](#); [Chartmetric pricing](#)).

Recommended stack for Respect the Funk (~\$150–350/mo)

STEP	TOOL	COST	WHAT IT GIVES
1. Find adjacent artists & who's using their sounds	Soundcharts (10-artist tier) or Chartmetric Manager	\$49/mo / \$40/mo	TikTok sound velocity, video counts per song, artist audience demos
2. Manually pull creator lists off TikTok sound pages	TikTok native (logged-out browsable)	\$0	Actual creators who already used adjacent sounds — measured, not estimated
3. Verify creator audience demos — for shortlisted creators only	TikTok One (free) + ask the creator for a screenshot of their own analytics	\$0	<i>Ground truth</i> from the creator's own dashboard
4. Only if step 3 doesn't scale	Modash Essentials	\$199/mo annual	380M index, honest methodology, has an API path

Steps 1–3 cost under \$50/month and produce better data than a \$299/mo estimation tool, because step 3 gets you the creator's *actual* Instagram/TikTok Insights numbers — the same first-party data CreatorIQ pays TikTok for — simply by asking. At our roster size (one artist, dozens not thousands of creators), **asking beats inferring**. Add Modash only when manual sourcing becomes the bottleneck.

Do not scrape. See §5 — the legal picture is more favorable to scrapers than commonly believed (Meta *lost* to Bright Data in 2024), but every platform's ToS prohibits it, enforcement against small players is technical (bans/blocks) rather than legal, and hiQ won the CFAA question twice and still went out of business. The asymmetry isn't worth it when sound-page data is free to browse.

Budget for creator payments, not tools. Music sound-use rates run **20–40% below** equivalent brand-sponsorship rates ([InfluencerFee](#)) — nano creators at \$20–150/video, micro at \$100–1,000. See §7.

1. The core data problem

The thing we need — *who follows this creator* — is the thing every platform guards hardest, and for a coherent reason: it's their users' personal data, and exposing it to arbitrary third parties is a privacy liability.

The universal rule across all three platforms: audience demographics flow only with the creator's explicit consent. There is no exception, no partner tier, and no price that unlocks arbitrary lookup.

PLATFORM	MARKETPLACE (2026 NAME)	AUDIENCE DEMOS TO BRANDS?	MECHANISM	CREATOR THRESHOLD	3RD-PARTY API	COST TO BRAND
TikTok	TikTok One (rebrand of Creator Marketplace, Mar 2025)	Yes, in-platform	First-party data in marketplace UI	10k followers, 1k views/30d, 3 posts/30d, 18+	Creator Marketplace API — approved partners only	No published fee (likely free)
Meta/IG	Brand Collabs Manager	Yes + "audience match" score	In-platform UI only	25k followers (2018 doc); 1k claimed for 2026 — UNVERIFIED	Graph API — per-creator OAuth + Advanced Access; no arbitrary lookup	Free; Meta takes no cut
YouTube	Creator Partnerships (ex-BrandConnect, renamed NewFronts 2026)	Only if creator opts into "channel insight sharing"	In-platform + invite-only API	18+, in YPP, no strikes	Creator Partnerships API — ~17–24 approved partners, no self-serve	Bundled with Google Ads account

1a. TikTok One (formerly TikTok Creator Marketplace / TTCM)

The rebrand matters for anyone reading older docs. TTCM was rebranded to **TikTok One** in early 2025; the legacy Creator Marketplace and Creative Challenge platforms stopped accepting new projects after **March 10, 2025** ([TikTok: How creators can upgrade to TikTok One](#)). TikTok One consolidates Creator Marketplace, Creative Center, and Partner Exchange under [ads.tiktok.com](#) ; a May 13, 2026 announcement describes a new "Creator AI Search" for shortlisting creators ([TikTok Business Blog](#)).

What it exposes: Brands browsing the marketplace can see and filter creators by **audience demographics** (age, gender, location) alongside niche, engagement rate, and past performance — this is TikTok's *first-party* data, i.e., real, not estimated ([TikTok One Support](#)). **The exact fields shown (age bands, gender split, country list) are UNVERIFIED** — TikTok's support article doesn't enumerate them, and secondary guides ([StackMatix](#)) may be stale.

Creator eligibility to be listed ([TikTok One Support](#)):

- Account in good standing, no repeated policy violations
- Age 18+ (regional variations)
- **10,000+ followers** (regional variations)
- **1,000+ post views in last 30 days**
- **3 posts published in last 30 days**

*This threshold is a strategic problem for us. The 10k-follower minimum means **nano creators (1k–10k)** — the cheapest and highest-acceptance-rate tier for music seeding (§7) — are entirely invisible in TikTok One. For the nano tier, sound pages and manual sourcing are the only route.*

Cost: No published subscription fee. Brands appear to access it free and pay creators directly. **UNVERIFIED** — no primary source states "free" explicitly; inferred from absence of pricing language.

API: TikTok launched a **Creator Marketplace API** in 2021 giving "partnered marketing companies" access to first-party audience demographics, growth trends, and campaign reporting ([TechCrunch, 2021](#)). Access is restricted to **approved partner organizations, not self-serve developers**. Whether it survives unchanged under the TikTok One rebrand is **UNVERIFIED** — no primary 2026 doc found. CreatorIQ is a confirmed current partner (§3).

1b. Meta / Instagram — the `instagram_manage_insights` question, answered precisely

This is the most misunderstood part of the stack, and the answer is more nuanced than "own account only."

Brand Collabs Manager is the official product name (no "Meta Creator Marketplace" exists in Meta's own materials — that term appears only in third-party blogs). Per Meta's own creator-facing page, a creator's portfolio "*displays niche categories, audience demographics, and recent post performance to any brand running a search,*" and brands get an "**audience match**" score showing what percentage of a creator's audience overlaps their target ([Meta: Introducing Brand Collabs Manager](#)).

Creator eligibility: The only dated primary source found (Meta Business Help Center, content dated July 30, 2018) states US creators, 25,000+ followers ([Meta Business Help](#)). Secondary sources claim the bar has since dropped to **1,000+ Page followers** plus engagement thresholds (15,000 post engagements OR 180,000 minutes viewed OR 30,000 one-minute views) and expanded beyond the US. **UNVERIFIED** — could not be traced to a primary Meta page; Meta's help pages render via JS and returned title-only stubs to automated fetching. Worth a manual browser check.

Cost: No access fee for brands. Meta states it does not take a cut of brand-partnership payments (2018-era language, with a "this may change" caveat) ([Meta](#)).

THE GRAPH API DISTINCTION — EXACTLY RIGHT

Permissions ([Meta: Insights — Instagram Platform](#)):

- Instagram Login flow: `instagram_business_basic` + `instagram_business_manage_insights`
- Facebook Login flow: `instagram_basic` + `instagram_manage_insights` + `pages_read_engagement`

Endpoint: `GET /{ig-user-id}/insights` ([Instagram User Insights API reference](#)).

The demographic metrics that exist:

- `follower_demographics` — follower age/gender/city/country breakdown. **Requires the account to have 100+ followers.**
- `engaged_audience_demographics` — demographic breakdown (country, city, gender) of accounts that engaged with content.
- Both carry Meta's own caveat: "Only viewers for whom we have demographic data are used in demographic metric calculations." — **even Meta's own first-party numbers are partial.**

The three rules that define what's possible:

1. "You can only get insights for a single user at a time." ([Meta docs](#)) — no bulk creator queries.
2. An app needs **Advanced Access** "if your app serves Instagram professional accounts you don't own or manage" ([same](#)).
3. **There is no endpoint that returns another creator's audience demographics from a handle or search.** None. Meta does not expose a public creator-demographics lookup.

So the precise answer: `instagram_manage_insights` is **not** restricted to your own account — it's restricted to **accounts that have explicitly authorized your specific app**, one at a time, and serving accounts you don't own additionally requires Meta's **Advanced Access** app-review tier. A third-party tool *can* read a creator's `follower_demographics` — but **only** if (a) that individual creator OAuth'd into that specific app, **and** (b) the app passed App Review for Advanced Access. Never unilaterally. This is exactly the flow influencer platforms use ([Phyllo explainer](#)).

Implication for us:** we could build this ourselves — an app that creators OAuth into, giving us their true `follower_demographics`. But at our scale, asking a creator to screenshot their own Insights tab achieves the identical result for \$0 and no App Review. **Build the OAuth app only if we're onboarding hundreds of creators.

1c. YouTube

YouTube Analytics API is strictly owner-gated. All requests require **OAuth 2.0** and the API explicitly **does not support the service account flow** — access must come from an individual's OAuth grant ([Google: YouTube Reporting API authorization](#)). Scopes: `yt-analytics.readonly`, `yt-analytics-monetary.readonly` ([YouTube Analytics API](#)). Available dimensions include age group, gender, country, device, traffic source — **but only for channels whose owner authorized your app. Content Owner Reports** extend this only to channels formally linked under the same Content Owner (e.g., a label/MCN with rights) — still not arbitrary channels ([Content Owner Reports](#)).

YouTube Creator Partnerships (renamed from BrandConnect, announced NewFronts, page dated **March 23, 2026**) rolled out first to 7 markets — US, India, Indonesia, UK, Brazil, Australia, Canada ([YouTube Blog](#); [ppc.land](#)). It's built into YouTube Studio (creator side) and Google Ads / DV360 (advertiser side).

Audience data is **opt-in by the creator** — YouTube's own language: "We also recommend that creators opt-in to channel insights sharing to provide advertisers more holistic data about your channel" ([YouTube Help](#)). Exact fields shared are **UNVERIFIED** (help page doesn't itemize). Creator eligibility: 18+, in YPP, ad-revenue-share eligible, available country, no active strikes ([same](#)).

The Creator Partnerships API is invite-only — roughly 17–24 approved platforms as of NewFronts 2026 (CreatorIQ, TRIBE, impact.com, Meltwater, Sprout Social, Viral Nation, and others), providing "audience demographics, geographic distribution, and interest-based insights" ([netinfluencer](#); [streamer.guide](#)). Basic Creator Search/Overview/Lists is available to any active Google Ads account in a YPP country ([netinfluencer](#)) — **UNVERIFIED** for a formal price, appears bundled/free.

YouTube is the lowest-priority channel for this campaign anyway — sound-driven discovery is a TikTok/Reels dynamic.

2. Vendor comparison — creator databases

Price and access

VENDOR	CHEAPEST REAL PRICE	API?	API COST	CONTRACT	VERDICT FOR A SMALL LABEL
Heepsy	\$89/mo (but audience filters need \$249/mo tier)	None	—	Monthly	Cheapest, but no API = dead end for an engine
Modash	\$199/mo annual / \$299 monthly	Yes	~\$10–16.2K/yr (UNVERIFIED)	Monthly or annual, 14-day free trial	✅ Best fit — honest, cheap seat, API path exists
HypeAuditor	\$299/mo annual	Yes	Enterprise only	Annual	Usable UI; API tier disqualifying
Grin	\$399/mo Lite (self-serve, new ~Jan 2026)	Yes (CRM only, not discovery)	Complete tier \$1,799/mo	Month-to-month on self-serve	CRM-first; enterprise track median \$27,150/yr
Kolsquare	€500/mo , annual only	Enterprise only, extra cost	Custom	Annual only, no trial	30% startup discount may apply → ~€350/mo
Upfluence	Sticker "\$478/mo" — real min ~\$1,276/mo	Yes	Sales-gated	12-mo lock-in + \$695 onboarding	❌ Misleading pricing, smallest DB
Aspire	~\$2,499/mo (Capterra estimate)	None found	—	Annual, no trial	❌ Out of range
CreatorIQ	~\$25–30K/yr floor; median \$39,250/yr	Yes	By request	Annual only	❌ Out of range (best data, though)

Data and provenance — the column that actually matters

VENDOR	CREATORS INDEXED	AUDIENCE DATA PROVIDED	ACCURACY CLAIM	
Modash	380M+ (source)	Age, gender, country, language, interests, credibility score (0–1), fake-follower rate	Scraping + ML estimation. Self-described as "like Google Search crawling"; image recognition + statistical sampling (Modash Data)	None. "Sampling model, not a complete census" — most honest in the set

VENDOR	CREATORS INDEXED	AUDIENCE DATA PROVIDED		ACCURACY CLAIM
HypeAuditor	227.8M+ (source)	Location, age, gender, ethnicity , interests, AQS	Public scraping only, explicitly disclosed: <i>"We collect publicly available information from open sources... We do not access private data such as DMs or insights from influencer accounts"</i> (methodology)	95.5% fraud detection, 0.73% mean error — for FRAUD, not demographics (see \$4)
CreatorIQ	~15M (source)	Age, gender, location, interests (creator + audience); YouTube real viewer demos	Genuine first-party APIs: official TikTok Marketing Partner w/ Marketplace API (source); YouTube Creator Partnership API since Mar 26, 2026 (press). Meta equivalent UNVERIFIED	No numeric claim
Kolsquare	"Millions," 5K+ followers, 180+ countries (exact # UNVERIFIED)	Age, gender, country/city, interests, language, Credibility Score (0–100)	Hybrid: official Meta Business Partner — <i>"verified data directly from Instagram"</i> via creator OAuth (FAQ). Everything else "aggregated public data." No TikTok/YouTube partnership found	<i>"Real reach and impressions (verified, not estimated)"</i> — connected accounts only
Upfluence	12M+ (source) — ~1/30th of Modash	ER, fake-follower %; IG audience age/gender/ location <i>"if the influencer authorizes it"</i> (IMH)	Mixed, poorly disclosed. OAuth for the IG slice. Differentiator is Shopify/ e-comm first-party data. No platform partnership found	None. Own disclaimer: percentages "not absolutes and are estimated"
Heepsy	4M+ (source) — conflicting 7M/9M/ 11M figures	ER, AQS, fake/bot detection; age/gender/ location filters (UNVERIFIED , 403-blocked)	No methodology page, no API partnership, no OAuth model found. Accuracy "based on sampling"	~85% fake-follower detection — third-party paraphrase, UNVERIFIED
Grin	190M+ (source)	Audience age, gender, "other key demographics"; credibility 0–100. Country/interest breakdowns UNVERIFIED	Public scraping for free tools (<i>"examines publicly available signals"</i> — source). "Gia" AI trained on \$1B in verified brand-creator transactions — real conversion data, but only for creators who transacted through Grin	None. Hedge: <i>"no automated tool is 100% definitive"</i>
Aspire	1M+ (source) — opt-in marketplace, not an index	Age, gender, geography; Audience Authenticity 0–100	Opt-in + heuristic. Creators self-register and connect socials. Authenticity uses <i>"the follower account's avatar and bio description, number of posts, followers vs following ratio..."</i> (help) — heuristic over follower list, not API data	None. Says manual vetting "is still important"

Three traps in this market

1. **"Official API partnership" ≠ "your search results are first-party."** CreatorIQ has real TikTok and YouTube API access — but that covers *opted-in/connected creators*. Its 15M discovery graph still blends public data. Same for Kolsquare and Grin. **The question to ask any vendor:** *"Is the audience demographic data on a creator I haven't onboarded first-party or estimated?"* Expect "estimated."
2. **Database sizes are not comparable.** Thresholds differ (Kolsquare 5K+, Heepsy 1K vs 3K, others undisclosed) and "profiles" vs "accounts" vs "registered creators" mean different things. Modash's 380M and Upfluence's 12M do

not measure the same thing — though a 30x gap still signals real coverage differences for niche/emerging music creators.

3. **Sticker prices mislead.** Upfluence's G2-listed "\$478/mo" becomes ~\$1,276/mo once you buy the three modules you actually need, plus \$79/mo per extra seat, \$695 onboarding, and a mandatory 12-month contract ([creator-hero](#)). Heepsy's \$89 tier **excludes audience filters** — the only reason we'd use it.

The central constraint of this whole market

Cheap seat vs. expensive API. Modash is the only vendor with a genuinely small-team price (\$199–299/mo), a documented API, and honest methodology — but its API reportedly starts at **\$10–16.2K/yr** (UNVERIFIED, from aggregators). Heepsy is cheapest and has **no API at all**. HypeAuditor's API is **Enterprise-only**. So: the affordable plans are all UI-only. **A programmatic creator-indexing engine, built on purchased data, does not have a sub-\$10K/yr path.** This is why the recommendation is to index manually from sound pages instead.

3. Data provenance and accuracy — be skeptical

This section is the deliverable the rest of the report depends on.

What the vendors actually do

Absent platform API access (which none of the affordable tools have), the method is:

1. Crawl public creator profiles repeatedly (Modash: *"several times a month... about sections, captions & descriptions of posts, images, videos, and other public info"* — [Modash Data](#)).
2. Look at the **subset of followers/commenters whose profiles are public**.
3. Run **image recognition on profile photos** and **NLP on names/bios/captions** to guess each one's age, gender, and location.
4. **Extrapolate that sample to the entire audience.**

Location specifically is inferred from *"location tags, languages, captions, bios, and other signals from followers"* ([Modash Help](#)).

The four structural limitations — all vendor-admitted

1. **Private follower lists = no data at all.** Modash: if a creator's follower list is private, *"audience demographics can't be calculated"* ([Modash blog](#)). This is direct proof the method is scrape-dependent, not API-privileged.
2. **The sample is not random — it's the public subset.** Private and inactive followers are structurally invisible. Whether public followers demographically resemble private ones is **an untested assumption**, and there's a plausible reason to think not (privacy behavior correlates with age and gender).
3. **Accuracy degrades exactly where we want to operate.** Modash: fake-follower analysis is *"solid for established creators with 10K+ followers,"* and *"thinner"* for nano-influencers, because there are *"limited behavioral patterns to analyze"* under ~10,000 followers ([Modash Data](#)). **Our cheapest, highest-conversion tier (nano, 1k–10k) is the tier where this data is weakest.**
4. **For very large accounts it gets more speculative, not less.** Modash says it *"sometimes infer[s] audience data by analysing signals from millions of other public profiles — but only when confidence is high enough"* — with **no disclosed confidence threshold** ([Modash Data](#)).
5. **Even Meta's own first-party data is partial:** *"Only viewers for whom we have demographic data are used in demographic metric calculations"* ([Meta docs](#)). The ground truth is itself a subset.

How wrong are they? Honest answer: nobody publicly knows.

No independent, peer-reviewed study was found that audits any of these platforms' demographic estimates against ground truth (e.g., a creator's actual Instagram Insights). This is a genuine gap in public research, not an oversight in this review — targeted searching found no Digiday/Business Insider/academic audit of demographic-estimate accuracy. *(Negative finding limited by search — absence of evidence, not evidence of absence.)*

What we do have:

CLAIM	NUMBER	WHAT IT ACTUALLY MEASURES	SOURCE
HypeAuditor's accuracy claim	95.5% of known fraud detected, 0.73% mean error	Fraud-detection recall against known fraud. NOT demographic accuracy.	HypeAuditor methodology
Heepsy's accuracy	~85% fake-follower detection	Fake followers, not demographics. Third-party paraphrase, not Heepsy's wording — UNVERIFIED	Hyred
Academic bot classifiers	91.4% acc / 90.8% precision / 92.1% recall; some claim 99.94%	Bot detection on 2015 Twitter data, in-sample/lab metrics. Not demographic inference	Cresci et al., <i>Decision Support Systems</i> , arXiv:1509.04098

⚠️ *The single most important skeptical point in this report: HypeAuditor's 95.5% is the only hard number any vendor publishes, and a salesperson will let you believe it means "our data is 95.5% accurate." It does not. It is fraud-detection recall against known fraud. Nobody — not Modash, not HypeAuditor, not CreatorIQ, not Kolsquare, not Grin, not Aspire — publishes any accuracy figure for audience age/gender/country estimates. In a market this competitive, if anyone could credibly claim "our age estimates are 90% accurate," they would. The silence is the finding.*

The proxy evidence that the underlying audience is often fake anyway

Points North Group (independent ad-fraud analytics) studied real 2018 Instagram campaigns and found **72% of Ritz-Carlton's influencer-program reach was fake**; Aquaphor ~50% of budget wasted; L'Occitane 39%; Pampers 32%; Olay 19%. **Micro-influencers (50K–100K) averaged ~20% fake followers**. Estimated \$102M of \$744M in 2018 influencer spend wasted on fake followers ([Ad Age](#); [MediaPost](#)).

Why this compounds: if 20–70% of a creator's followers are bots, then the demographic breakdown computed on top of that follower base is profiling a population that partly doesn't exist. The errors multiply. *(Caveat: this study uses 2018 data and measures authenticity, not demographic accuracy — treat as directional.)*

Secondary/self-reported figures, **UNVERIFIED**: HypeAuditor's own 2024 claim that ~22% of Instagram accounts show inauthentic activity; a 2025 Influencer Marketing Hub survey claiming 63% of brands experienced influencer fraud in the prior 18 months ([both via InfluencerDB](#)).

Error bars to actually assume

Since no published error rates exist, these are **reasoned engineering assumptions, not sourced figures** — flagged as such:

DATA TYPE	SOURCE	TRUST	WORKING ASSUMPTION
Creator's own screenshot of Insights	Platform first-party	High	Ground truth (mod. Meta's own "viewers we have data for" caveat)

DATA TYPE	SOURCE	TRUST	WORKING ASSUMPTION
TikTok One / Brand Collabs / opted-in CreatorIQ	Platform first-party	High	Ground truth for connected creators
Gender split, est. from 100k+ follower account	Sampled + ML	Medium	±10–15pp — binary classification on photos is the easiest task here
Country/top-market, est.	Sampled + ML	Medium-low	Directionally right for the #1 market; long tail unreliable
Age bands, est.	Sampled + ML	Low	±1 full age band. Photo-based age estimation is genuinely hard
Interests, est.	Inferred from bios/captions	Low	Treat as tags, not percentages
Anything on a <10k-follower creator	Sampled + ML	Very low	Vendor-admitted "thinner." Do not make spend decisions on this
Any creator with a private follower list	—	None	No data exists

The rule this implies: *use estimated demographics to **rank and shortlist**, never to **justify spend**.* A tool saying "68% female, 18–24, US" is a hypothesis worth 10 minutes of manual verification — not a fact worth \$500.

4. Scraping — the legal and practical reality

4a. hiQ v. LinkedIn — the full timeline, corrected

The famous version of this story is wrong, and getting it wrong leads teams to bad decisions.

1. **2017** — LinkedIn sends hiQ a cease-and-desist; hiQ sues for declaratory relief.
2. **Aug 14, 2017** — N.D. Cal. grants hiQ a preliminary injunction (273 F. Supp. 3d 1099).
3. **Sept 9, 2019** — **Ninth Circuit affirms: hiQ Labs, Inc. v. LinkedIn Corp., 938 F.3d 985 (9th Cir. 2019)**. Where a network generally permits public access, accessing public data isn't "without authorization" under the CFAA. *This is the ruling everyone cites.* ([9th Cir. opinion PDF](#))
4. **June 14, 2021** — SCOTUS **GVRs** (141 S. Ct. 2752) in light of *Van Buren*.
5. **Apr 18, 2022** — **Ninth Circuit reaffirms on remand: 31 F.4th 1180 (9th Cir. 2022)**. Public scraping still doesn't violate CFAA even post-*Van Buren*. ([opinion PDF](#))
6. **Aug 2022** — Injunction **dissolved** — hiQ no longer had an ongoing business. AWS had suspended its account ~April 2020; hiQ's CEO told its litigation funder in March 2020 it was **\$895,000 in debt** ([Staffing Industry Analysts](#)).
7. **⚠️ Nov 4, 2022 — the step everyone misses.** On the *merits* (not the CFAA injunction question), Judge Edward Chen (N.D. Cal., No. 3:17-cv-03301-EMC) grants summary judgment finding **hiQ breached LinkedIn's User Agreement** — via its own scraping *and* via crowdsourced "Turker" workers who created **fake LinkedIn profiles**. Mixed ruling, but LinkedIn won the core contract theory. ([Proskauer](#); [National Law Review](#))
8. **Dec 6–7, 2022 — final resolution.** Stipulated consent judgment: **hiQ found liable**, pays LinkedIn **\$500,000**, permanently ceases all LinkedIn scraping, deletes all LinkedIn-derived code/data/algorithms. hiQ stipulates to liability for breach of contract, CFAA (as to the *fake-account* access specifically), California computer-crime law,

trespass to chattels, and misappropriation — **plus discovery sanctions for spoliation.** ([Privacy World](#); [Morgan Lewis](#))

9. hiQ Labs is defunct.

The correct takeaway is not "scraping public data is legal." It is: "scraping public data may not violate the CFAA, but it can still be a breach of contract that destroys your company." hiQ won the CFAA question decisively — twice, at the circuit level — and still went out of business.

4b. Where CFAA law landed (2021–2026)

Van Buren v. United States, 593 U.S. 374 (2021) (June 3, 2021, 6-3, Barrett, J.): the CFAA's "exceeds authorized access" clause reaches only someone who accesses a computer with authorization but obtains information in areas **off-limits to them** — not someone who misuses information they were entitled to access. Resolved a circuit split in favor of the narrow reading ([SCOTUS opinion PDF](#); [CRS summary](#)).

Net: **the CFAA is now a weak tool against scraping of public-facing sites.** Platforms rely on contract (ToS), trespass to chattels, copyright, and state computer-crime statutes instead ([Jackson Lewis](#)).

4c. The 2024 rulings that cut *against* the platforms

Meta Platforms, Inc. v. Bright Data Ltd. (N.D. Cal.) — **Judge Edward Chen** (the same judge who ruled against hiQ) granted **summary judgment for Bright Data on Jan 23, 2024**, holding Meta's ToS bind only users who are **logged in** — **scraping public data while logged out is not a ToS breach**, because Meta's terms don't reach non-account-holders viewing public pages. Meta then voluntarily dismissed its remaining claim (Feb 23, 2024) and **waived its right to appeal** ([TechCrunch](#); [Farella Braun + Martel](#); [Eric Goldman's blog](#)).

X Corp. v. Bright Data Ltd. (N.D. Cal., May 10, 2024) — court dismissed X's claims, holding **copyright law preempts** contract/trespass/tortious-interference claims aimed at stopping scraping of public data, since X doesn't own the underlying content (its users do) and can't use ToS to manufacture a copyright-like monopoly over public data ([MoFo](#); [Skadden](#)).

Both are district-court rulings (not binding precedent outside N.D. Cal.) and both involved a well-resourced defendant (Bright Data) able to fight for years. But together they meaningfully **strengthen** the scraper's legal position for logged-out public scraping — a real correction to the "hiQ lost, therefore scraping is illegal" narrative.

4d. Platform ToS — uniformly prohibitive regardless of case law

- **TikTok:** prohibits "scraping, crawling, exporting or otherwise extracting any data or content in any form from the platform using any automated system or software, including automated 'bots,' except as approved in writing by TikTok" ([TikTok ToS](#)).
- **Meta/Instagram:** "You may not access or collect data from our Products using automated means (without our prior permission)." Meta maintains separate [Automated Data Collection Terms](#) requiring **express written permission first** — accepting the terms is not itself permission. Enforcement reserved "at any time, including while we investigate you, with or without notice." **But** per *Meta v. Bright Data*, this has been judicially held **not to apply to logged-out public access** — a live tension between Meta's stated policy and controlling N.D. Cal. law.
- **YouTube/Google:** prohibits "accessing the Service using any automated means such as robots, botnets or scrapers," except public search engines per robots.txt or with prior written permission ([YouTube ToS](#); [API Developer Policies](#)).

4e. Detection and enforcement in practice

Technical (the layer that will actually stop us): rate limiting per IP/session, CAPTCHAs, device/browser fingerprinting (screen resolution, fonts, TLS fingerprint), ML behavioral bot-detection, IP reputation scoring. TikTok publicly documents using CAPTCHAs, device/network/interaction monitoring, and rate limiting ([TikTok: How We Combat Unauthorized Data Scraping](#)).

Legal (reserved for commercial-scale operators): Meta's pattern is C&D letter → account bans → litigation. It disabled ~38,000 fake accounts run by Voyager Labs and sued ([Meta: Taking Action Against Scraping for Hire](#)); settled with BrandTotal/Unimania in Oct 2022 with a **permanent injunction** plus payment. LinkedIn remains the most consistently successful litigant (hiQ \$500K; Mantheos 2022 settlement forcing data deletion + software destruction — though that was a **fraudulent-access** case involving fake accounts and stolen payment methods, not pure public scraping ([Bloomberg Law](#))).

Honest verdict

Scraping is a trap for us — but not primarily for legal reasons.

- **The legal risk is genuinely lower than the folklore suggests.** Post-*Van Buren* and post-*Bright Data*, logged-out scraping of public pages in the Ninth Circuit has real defenses. A well-funded defendant can win.
- **But every platform's ToS prohibits it**, so we'd be violating platform rules regardless of how a lawsuit would resolve — exposing us to the enforcement toolkit that actually matters at our size: **technical blocking and account bans**. We need our TikTok and Instagram accounts to *run the campaign*. Losing them to a scraping ban is a self-inflicted wound orders of magnitude worse than a \$299/mo tool subscription.
- **Litigation is asymmetric and ruinous even when you'd win.** hiQ won the CFAA question twice at the circuit level and went bankrupt from 5+ years of cost and uncertainty before losing on contract. Bright Data beat Meta and X — Bright Data is a data company with a litigation budget. We are a label with one artist.
- **And the economics don't justify it anyway.** Scraping would get us *estimated* demographics — the same low-confidence data (§3) we could buy for \$199/mo, or beat entirely by asking a creator for a screenshot. **We'd take on real risk to obtain data we've just established we can't trust.**

Verdict: no. Browsing TikTok sound pages manually — which is just *using the product as intended* — gets us the highest-signal data (§6) with zero risk.

5. Music-specific creator discovery — the highest-signal path

This is the strategic core of the pillar. If a creator already posted with an adjacent artist's sound and it performed, that is **measured behavioral evidence** their audience responds to this music — categorically better than an inferred demographic guess. It skips the entire estimation problem.

5a. TikTok sound pages

Publicly browsable, no login required. TikTok's public music API serves sound pages without authentication ([tokportal](#)). Tapping a sound on any video opens a feed of every video using that audio; the `user_count` field = total videos that have used the sound ([socialcrawl](#)). Logged-out guests can't see comment threads.

No compliant commercial API for "who used this sound":

- **TikTok Research API** — restricted to verified academic/non-profit institutions, ~4-week approval, 1,000 requests/day, and **explicitly prohibits commercial use**. It does expose a `music_id` query field — which is exactly what we'd want, and exactly what we can't have ([TikTok Research API](#)).

- **TikTok Commercial Music Library** — 879,000–1,000,000+ royalty-free tracks for business accounts. This is a **licensing library, not an analytics tool** ([TikTok CML](#)).
- **TikTok Creative Center** — trending songs/hashtags/creators with region filters and interest-over-time. **Aggregate trend data, not per-sound creator lists**. Free ([Creative Center](#)).
- ⚠️ Following a **Universal Music Group dispute**, many audio metadata fields (esp. original-artist attribution for UMG catalog) now return empty/limited data ([sociavault](#)).
- **No official Content Posting API endpoint lets a third party attach an existing trending native sound to a post** ([sociavault](#)) — relevant if we ever automate posting.

Unofficial scrapers (Apify-hosted "TikTok Sound Scraper" etc.) pull per-sound creator handles, follower counts, bios, verified status, plus per-video stats, up to ~500 videos/sound ([apify](#)). **ToS-violating and UNVERIFIED for reliability** — see §4. **Not recommended.**

Practical conclusion: manual sound-page browsing is free, compliant, and gives us exactly the list we need. At one artist and dozens of creators, this is a person-afternoon, not an engineering project.

5b. Music analytics platforms

TOOL	BASE PRICE	WHAT IT GIVES US	API
Soundcharts	\$10/mo (1 artist), \$49/mo (10 artists), \$129/mo PRO	TikTok video-count-per-song over time, audience demos (age/gender/location/language), geographic reach, spike alerts. All from public metrics — no credentials needed to track any artist (Soundcharts TikTok Analytics)	Starter \$50/mo (10k calls) → Enterprise \$4,500/mo (dev pricing)
Chartmetric	\$40/mo Manager (10 artists), \$117/mo Premium, \$150/mo Ultra	"Artist Sounds on TikTok," "Popular TikTok Sounds," 7-day velocity on rising sounds, UGC usage frequency (Chartmetric TikTok Analytics). Premium adds "Creator channel insight" + "Brand & sponsorship insight"	From \$350/mo (pricing)
Songstats	~ \$12/mo Artist, ~ \$20–27/mo Label, ~ \$99–130/mo Pro — all UNVERIFIED (JS pricing page unfetchable; figures from aggregators and mutually inconsistent)	Cross-platform (Spotify/Apple/TikTok/IG/YouTube/Shazam). TikTok page claims " <i>uncover top influencers, track engagement metrics, gain detailed insights into audience demographic and locations</i> " (songstats.com/platforms/tiktok)	Enterprise/custom quote, not publicly priced (docs)

Key unverified item: Chartmetric reportedly has a "**Top Influencers Using Artist's Sound**" module explicitly framed as useful "*for assessing the value of influencer campaigns*" — which would be exactly the feature we want.

UNVERIFIED — Chartmetric's help center pages returned empty to automated fetching. **Confirm this in a trial account before subscribing; if real, it alone justifies Chartmetric over Soundcharts.**

A "**Top Influencers by Country**" feature surfaced in searches attributed to Soundcharts appears to actually belong to a separate tool, **Tokchart** ([tokchart.com](#)) — **flagged as likely misattribution, UNVERIFIED.**

5c. The play

1. Identify 5–10 **adjacent artists** to Hallow Youth (similar genre/sound/tempo/mood).
2. In Soundcharts/Chartmetric, find which of their tracks have **TikTok sound traction and rising 7-day velocity**.
3. Open those sound pages on TikTok. **Manually list the creators who used them** and whose videos performed.
4. That list *is* our index. These creators have **demonstrated** — not estimated — that their audience engages with this music.

5. Verify demographics for the shortlist by **asking creators for their analytics screenshot** during outreach (they'll share it; it's how rate negotiation works anyway — see §7's note on rate cards).

6. What it costs to engage creators

Music/sound-use rates (the relevant numbers)

TIER	FOLLOWERS	TIKTOK SONG-PUSH RATE/VIDEO
Nano	1K–10K	\$20–\$150
Micro	10K–100K	\$100–\$1,000
Mid-tier	100K–500K	\$500–\$4,000
Macro	500K–1M	\$2,000–\$12,000
Mega	1M+	\$8,000–\$80,000+

Source: [InfluencerFee: Music Influencer Rates](#), fetched July 2026.

Key finding: music campaigns are cheaper than generic UGC. The same source states music-promotion rates run 20–40% lower than equivalent brand product sponsorship rates, because sound-use content has looser creative requirements — creators use the song however fits their content, unlike rigid brand-messaging sponsorships. This confirms the thesis: creators want to use trending sounds anyway, so we're paying a discount to a willing party.

Generic sponsored rates, for comparison

TIER	TIKTOK VIDEO	INSTAGRAM REEL
Nano (1K–10K)	\$25–\$200 (also cited \$20–\$100, \$100–\$300)	\$50–\$300 (also cited \$100–\$500)
Micro (10K–100K)	\$200–\$1,500 (also cited \$300–\$2,000)	\$300–\$800 (also cited \$500–\$5,000)

Sources: [Influee](#); [Influencer Marketing Hub: Nano Rates](#); [Nowadays Media](#). Ranges vary widely across sources — treat as order-of-magnitude, not precision. Collabstr 2026 data cites a **\$345 average** per sponsored TikTok post across all tiers; Reels run ~32% higher than equivalent-follower TikTok rates (via aggregators citing Collabstr — UNVERIFIED primary).

Spark Ads / usage rights add 20–50% on top of base content rate ([Influee](#)) — budget for this if we want to run creator content as paid media (see Pillar 8).

Gifting and seeding economics

- Gifting-only acceptance is **3–5x higher with nano creators**; drops to **10–15% acceptance at the micro tier** — gifting stops working past ~10K followers ([Gigapay via aggregator](#), UNVERIFIED primary).
- Volume seeding: seed 100+ nano creators, expect 30–50 to post; **cost per content piece \$5–\$20** (COGS only). UNVERIFIED.

- Hybrid: **\$100–\$500 flat fee + product** once gifting-only conversion drops.

Real label campaign structures

- **Typical phased campaign:** Phase 1 (Seed) — 100–500 nano creators at gifting or \$20–\$100 each. Phase 2 (Amplify) — 20–50 micro creators at \$100–\$1,000 each to build the trend template. Mid-size label single-launch total: **\$15,000–\$80,000** ([InfluencerFee](#)).
- **RCA Records** works with an influencer agency to identify **10–30 lower-follower-count creators per single**, lets them post varied creative concepts, then doubles down on whichever trend works. Those 10–30 creators together cost **\$8,000–\$50,000** ([Billboard](#) — **original publication date unclear, treat as directional**).
- Two digital marketing agencies cited **\$5,000** as the low end for an effective push; **\$80,000+** for major artists ([Billboard, same](#)).
- **Obsolete benchmark:** 2020 pandemic-era, individual creators commanded \$10,000+/video, one reportedly **"\$50,000 just to play the sound."** Big single-creator buys have declined in effectiveness since 2021–22 in favor of spreading budget across many smaller creators for a grassroots look ([Billboard, same](#)).
- Intermediaries: **Sound.Me** (automation platform connecting creators with artists/labels for paid sound placement); TikTok's in-app **"Work With Artists"** feature (creators with 50,000+ followers) ([Billboard, same](#)).

Realistic Respect the Funk budget: RCA's model — 10–30 nano/micro creators, varied concepts, double down on what works — is directly copyable at our scale. At nano/micro music rates, **30 creators × \$50–200 = \$1,500–6,000 per single**. That's the right order of magnitude, and it dwarfs any tool subscription — which is precisely why the tooling recommendation is "spend \$50/mo, not \$500/mo, and put the difference into creator payments."

⚠️ Disclosure — an active regulatory risk as of *this month*

An **NPR investigation published July 13, 2026** — two days before this research — found five music influencers who **routinely accept undisclosed payments** to post about songs. The documented workflow: label/agency contacts creator or manager → requests a **rate card** (TikTok post / IG feed / IG Stories pricing) → creator submits a draft video for label approval → payment after posting ([NPR](#)).

FTC guidance requires disclosure of any "financial, employment, personal, or family relationship with a brand" being promoted. Asked whether undisclosed song promos violate this, the **FTC said it evaluates "case-by-case" and declined to comment on specifics**. NPR contacted Interscope, Republic, Atlantic, RCA, Arista, Epic, Columbia, Sub Pop, and Sony/UMG/WMG — **none responded by publication** ([NPR](#)).

Action item: build FTC-compliant disclosure (#ad / #sponsored / Paid Partnership tag) into every creator contract and brief from day one, and store `disclosure_status` as a first-class field in the index (§7). This is a live press-scrutiny area right now, the industry norm is non-compliance, and an indie label is a cheaper target than a major. It is also, usefully, free to get right.

(Useful side effect: the rate-card workflow NPR documents is the same conversation where we ask for the analytics screenshot — §3's ground-truth path. Compliance and data quality point the same direction.)

7. The practical index — proposed schema

Design principles:

1. **Every demographic field carries its provenance and confidence.** A field without `source` is unusable.
2. **Measured beats estimated, always.** Structure makes it impossible to confuse them.

3. **Sound usage is a first-class entity** — it's our highest-signal data (§5).
4. **Disclosure status is not optional** (§6).

```

-- ===== CREATOR =====
creator
  id          uuid PK
  handle      text
  platform    enum(tiktok, instagram, youtube)
  platform_user_id text    -- stable ID; handles change
  display_name text
  profile_url text
  bio         text
  country_self_reported text    -- from bio; MEASURED-ish (self-declared)
  follower_count int    -- MEASURED (public)
  follower_count_at timestampz -- decays fast; always timestamp it
  follower_tier enum(nano, micro, mid, macro, mega) -- derived
  is_verified bool
  first_seen_at timestampz
  last_refreshed_at timestampz

-- ===== AUDIENCE DEMOGRAPHICS — provenance-tagged =====
-- One row per (creator, dimension, bucket, source). NEVER overwrite an
-- estimate with another estimate; append and let source rank decide.
audience_demographic
  id          uuid PK
  creator_id  uuid FK
  dimension   enum(age, gender, country, city, language, interest)
  bucket      text    -- '18-24' | 'female' | 'US' | 'indie-music'
  share       numeric(5,4) -- 0.0-1.0

-- THE PROVENANCE BLOCK — the whole point of this table
source        enum(
  'creator_screenshot', -- ground truth, creator's own Insights
  'creator_oauth',      -- ground truth, via our app w/ their token
  'platform_marketplace', -- ground truth (TikTok One / Brand Collabs)
  'vendor_estimate',    -- Modash/HypeAuditor/etc — ESTIMATED
  'our_inference'       -- our own guess — ESTIMATED
)
is_measured   bool    -- GENERATED: source IN (first three)
vendor        text    -- 'modash' | 'hypeauditor' | null
confidence    enum(high, medium, low, very_low)
error_bar_pp  numeric -- assumed ± percentage points (§3 table)
sample_size   int     -- if vendor discloses (they mostly don't)
collected_at timestampz -- >3mo old = stale, re-verify
notes        text    -- 'follower list private, no data'

-- ===== SOUND USAGE — our highest-signal table =====
sound_usage
  id          uuid PK
  creator_id  uuid FK
  sound_id    text    -- TikTok music_id
  sound_name  text
  artist_name text
  is_adjacent_artist bool -- one of our 5-10 reference artists?
  video_url   text
  posted_at   timestampz
  views       int     -- MEASURED
  likes       int     -- MEASURED
  comments    int     -- MEASURED
  shares      int     -- MEASURED
  engagement_rate numeric -- derived, MEASURED
  performed_well bool    -- vs. this creator's own median
  discovered_via enum(sound_page_manual, chartmetric, soundcharts, referral)

-- ===== ENGAGEMENT BASELINE =====
engagement_metric
  creator_id  uuid FK
  measured_at timestampz
  median_views int    -- MEASURED — trust over follower_count
  median_engagement_rate numeric -- MEASURED
  post_frequency_30d int
  view_to_follower_ratio numeric -- best cheap authenticity signal we control
  vendor_credibility_score numeric -- ESTIMATED (Modash 0-1 / HypeAuditor AQS)
  vendor_fake_follower_pct numeric -- ESTIMATED — unreliable <10k followers (§3)

-- ===== OUTREACH / DEALS =====
contact
  creator_id  uuid FK
  email       text
  manager_email text
  preferred_channel enum(email, dm, manager)
  rate_card_on_file bool -- NPR: this is the standard ask (§6)

deal

```

```

id                uuid PK
creator_id        uuid FK
campaign_id       uuid FK
quoted_rate_usd   numeric
agreed_rate_usd   numeric
deliverable        enum(tiktok_video, ig_reel, ig_story, yt_short)
usage_rights       enum(none, spark_ads, whitelisting) -- +20-50% cost ($6)
usage_rights_expires_at date
status            enum(prospect, contacted, negotiating, agreed, posted, paid, declined)

-- COMPLIANCE — not optional ($6, NPR 2026-07-13)
disclosure_required bool DEFAULT true
disclosure_method    enum(paid_partnership_tag, ad_hashtag, verbal, none)
disclosure_verified bool -- did we actually CHECK the live post?
disclosure_checked_at timestampz

-- ===== PERFORMANCE (closes the loop) =====
campaign_result
deal_id            uuid FK
video_url          text
views_24h          int
views_7d           int
views_30d          int
saves              int
sound_uses_driven int -- did others use OUR sound after this post?
streams_attributed int -- best-effort, join to Pillar 4/9
cost_per_1k_views numeric -- derived — the real efficiency metric
would_rehire       bool -- the single most valuable field over time

```

Notes on the schema

- **audience_demographic.source** is the most important column in the database. Never render an estimated share next to a measured one without visual distinction. If we forget this, we will make \$5,000 decisions on ± 1 -age-band guesses.
- **is_measured** should drive the UI. Estimated = grey/italic with an error bar. Measured = solid. This is a *design* requirement, not just a data one.
- **view_to_follower_ratio** is our best free authenticity signal. It needs no vendor. A creator with 50k followers and 800 median views has a problem no demographic breakdown will reveal.
- **sound_usage.performed_well** is the shortlisting key — not demographics. Rank by "used an adjacent artist's sound and beat their own median," then verify demographics only for that shortlist.
- **would_rehire** compounds. After 2–3 campaigns, our own first-party performance data on 30 creators is worth more than any vendor's 380M-row estimated index. **That is the actual long-term asset here** — the same insight behind Grin's "Gia" model trained on \$1B of verified transactions ([Grin](#)), just at our scale.
- **Timestamp everything**. Follower counts and demographics both decay; vendor guidance treats >3 months as unreliable.

What to *not* build yet

No OAuth app (§1b) until we're onboarding 100+ creators — a screenshot request achieves the same for \$0 and no App Review. No vendor API integration until the Modash UI's 300-profile-opens/mo cap actually binds. No scraper, ever (§4).

Open questions / verification debt

1. Chartmetric's "Top Influencers Using Artist's Sound" — confirm in a trial account. If real, it's the single highest-value feature in this report and changes the tool recommendation.
2. Meta Brand Collabs Manager 2026 follower threshold — the 1,000-follower figure is secondary-sourced; Meta's help pages are JS-rendered and resisted automated fetching. Check in a browser.

3. **TikTok Creator Marketplace API status under TikTok One** — whether the 2021 partner API survives the rebrand, and whether partner access is remotely attainable.
 4. **Modash's actual API minimums** — the \$10–16.2K/yr figures are aggregator-sourced. Ask sales directly.
 5. **Songstats pricing** — page is JS-only; figures inconsistent across aggregators (\$99 vs \$130/mo for Pro). Check at signup.
 6. **Kolsquare's 30% startup discount** — (<3yrs, <€500K raised, <10 employees). Respect the Funk likely qualifies; would bring Discovery to ~€350/mo. Probably still not worth it vs. Soundcharts, but worth knowing.
 7. **Grin's \$399 Lite tier** — unclear whether it includes full 190M discovery-database access or just CRM.
 8. **Heepsy's actual tiers/AQS claims** — heepsy.com returned 403 to all automated fetches; everything in §2 for Heepsy is aggregator-sourced.
-

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